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TAB 11



Board of Education Report

File #: Rep-142-23/24, **Version:** 1

Resolution of Intention to Dedicate Easements, Associated with the Proposed Street and Alley Vacation for Olympic Primary Center
December 12, 2023
Facilities Services Division

Action Proposed:

Authorize: (1) the dedication of two easements to the City of Los Angeles (“City”) by adopting a Resolution of Intention to Dedicate Easements, Exhibit F, with a vote of at least two-thirds of its members; and (2) the Chief Facilities Executive and/or her designee(s) to execute reasonable agreements associated with these easements and vacation of the alley.

These easements are at the Olympic Primary Center and are described herein and are on file and available for public examination in the Board Secretariat’s Office, 333 South Beaudry Avenue, 24th Floor, Los Angeles, California 90017.

Property: Portions of Olympic Primary Center
(See Exhibits A through E)
950 South Albany Street
Los Angeles, CA 90015

Purpose: Dedication of Street Easements

Grantee: The City of Los Angeles

Consideration: None

Date of Public Hearing: January 23, 2024

Easements to be Dedicated:

- i. A one (1) foot wide easement to be added onto a previously dedicated easement for future street widening on Albany Street. Please see Exhibit B.
- ii. A three (3) foot wide easement to be added onto a previously dedicated easement for future street widening on West Olympic Boulevard. Please see Exhibit D.

Background:

Olympic Primary Center, formerly known as Belmont New Primary Center No. 11 (“Project”), was approved on October 23, 2001. The Project included the vacation of an alley located between Albany and Blaine Streets at Olympic Boulevard. Please see Exhibit E. This alley was closed in 2003 and incorporated as part of the school site. The Project was completed in the Fall of 2005.

As part of the vacation of the alley, on October 22, 2002, the Board of Education (“Board”) authorized the dedication of the following to the City:

- 2-foot-wide easement along Olympic Boulevard (Note: the subject of the proposed easement described in (ii) above.)

- 4-foot-wide easement along Albany Street (Note, the subject of the proposed easement described in (i) above.)
- 18-foot-wide easement along Blaine Street (Note, the subject of a reduction in size per the 2019 application to vacate the alley.)
- 15 x 15-foot corner cut easement at the northeast corner of Olympic Boulevard /Albany Street.
- 15 x 15-foot corner cut easement at the northeast corner of Olympic Boulevard /Blaine Street.
- A hammerhead easement in the alley between Albany Street and Blaine Street.

The conditions to vacate a street are determined by the City after submittal of the application and will expire with the passage of time. The 2002 application to vacate the alley and the applications submitted thereafter were partially completed.

On February 11, 2019, staff submitted a new application to vacate the alley and a portion of the previously dedicated 18-foot-wide easement along Blaine Street. Due to the City changing its street standards, Los Angeles Unified has the opportunity to regain the unrestricted use of a 14-foot-wide area that will reduce the 18-foot-wide easement along Blaine Street to a four (4) foot wide easement along Blaine Street. Please see Exhibit E.

The two (2) new easements and the vacation of 14-feet of the existing 18-foot-wide easement along Blaine Street are required because the City's street standards have changed and are necessary to ensure public use and the City's access to maintain and repair the street.

California Education Code sections 17556 through 17561 specify that a Notice of Adoption of Resolution of Intention to Dedicate Easements include a time not less than 10 days after adoption of the Resolution to hold a public hearing by the Board. The adopted Resolution must be posted in three public places within Los Angeles Unified's boundaries no less than 10 days before the date of the public hearing and be published no less than five days before the hearing in a newspaper of general circulation within Los Angeles Unified's boundaries. The Los Angeles Daily Journal will be used for this purpose.

Olympic Primary Center is located within the boundaries of Region East, and Board District 2 (Dr. Rocio Rivas), and serves approximately 150 students.

Expected Outcomes:

Adopt the Resolution of Intention to Dedicate Easements at Olympic Primary Center, and authorize the Chief Facilities Executive, and/or her designee(s) to execute agreements and other reasonable instruments associated with the proposed vacation.

Board Options and Consequences:

If approved, the Chief Facilities Executive and/or her designee(s) will execute agreements and other reasonable instruments to proceed with the steps necessary to dedicate these easements to the City and complete the proposed vacation requirements. After dedication of the future street easements, the City will be able to construct, maintain and repair the public streets adjacent to the school to meet the current street standards.

If the Board does not adopt the Resolution of Intention to Dedicate Easements at Olympic Primary Center, Los Angeles Unified will not be able to fulfill the City's requirements for the street vacation request. Potentially, Los Angeles Unified could be required to prepare a subdivision map to consolidate the school site.

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Policy Implications:

The proposed action advances Pillar 4 Operational Effectiveness Modernizing Infrastructure of the Los Angeles Unified 2022-2026 Strategic Plan by dedicating easements associated with school construction projects.

Budget Impact:

All costs associated with the Resolution of Intention to Dedicate Easements at Olympic Primary Center are included in the Project budget and funded from Bond Program funds.

Student Impact:

The dedication of easements at Olympic Primary Center will ensure the students and the community will have safe public right-of-way access near the campus. The vacation will enable Los Angeles Unified to consolidate adjoining properties at Olympic Primary Center.

Equity Impact:

As part of the school construction process of obtaining a permit from the City of Los Angeles Department of Building and Safety, applicants are required to have the Bureau of Engineering review and approve plans prior to a permit being issued.

Issues and Analysis:

None.

Attachments:

Exhibits A - E as follows:

- A - Legal Description for One-Foot-Wide Dedication for Future Street on Albany Street
- B - Exhibit Map for One-Foot-Wide Dedication for Future Street on Albany Street
- C - Legal Description for Three Feet Wide Dedication for Future Street on Olympic Blvd
- D - Exhibit Map for Three Feet Wide Dedication for Future Street on Olympic Blvd
- E - Vacation Exhibit Map

Exhibit F - Notice of Adoption of Resolution of Intention to Dedicate Easements at Olympic Primary Center

Informatives:

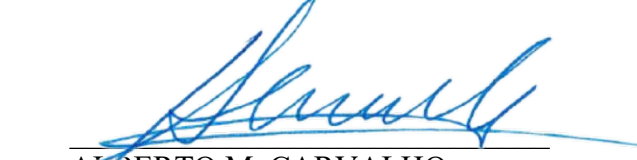
None

Submitted:

11/30/23

File #: Rep-142-23/24, Version: 1

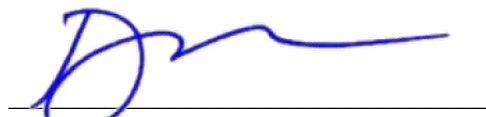
RESPECTFULLY SUBMITTED,


ALBERTO M. CARVALHO
Superintendent

APPROVED BY:

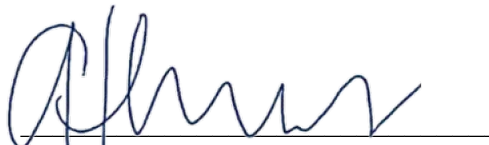

PEDRO SALCIDO
Deputy Superintendent,
Business Services and Operations

REVIEWED BY:


DEVORA NAVERA REED
General Counsel

☒ Approved as to form.

APPROVED BY:


KRISZTINA TOKES
Chief Facilities Executive
Facilities Services Division

REVIEWED BY:


NOLBERTO DEGADILLO
Deputy Chief Business Officer, Finance

☒ Approved as to budget impact statement.

PRESENTED BY:


AARON BRIDGEWATER
Director of Facilities Planning & Development
Facilities Services Division

EXHIBIT A

LEGAL DESCRIPTION ALBANY STREET 1.00 FOOT WIDE DEDICATION FOR FUTURE STREET

THE SOUTHEASTERLY 1.00 FOOT OF THE NORTHWESTERLY 15.00 FEET OF LOTS 20 AND 21 OF OWENS AND SCOTT'S SUBDIVISION OF A PORTION OF LOT 2 IN BLOCK 36 OF HANCOCK'S SURVEY, IN THE CITY OF LOS ANGELES, COUNTY OF LOS ANGELES, STATE OF CALIFORNIA, AS PER MAP RECORDED IN **BOOK 5, PAGE 581** OF MISCELLANEOUS RECORDS, IN THE OFFICE OF THE COUNTY RECORDER OF SAID COUNTY:

EXCEPTING THEREFROM THE NORTHEASTERLY 0.50 FEET OF SAID LOT 20.

THIS DESCRIPTION SPECIFICALLY EXCLUDES THE ALLEY, 20.00 FEET WIDE, LYING BETWEEN SAID LOTS 20 AND 21.

EXHIBIT B IS INCLUDED HEREIN AND MADE A PART HEREOF.

DESCRIPTION PREPARED BY:

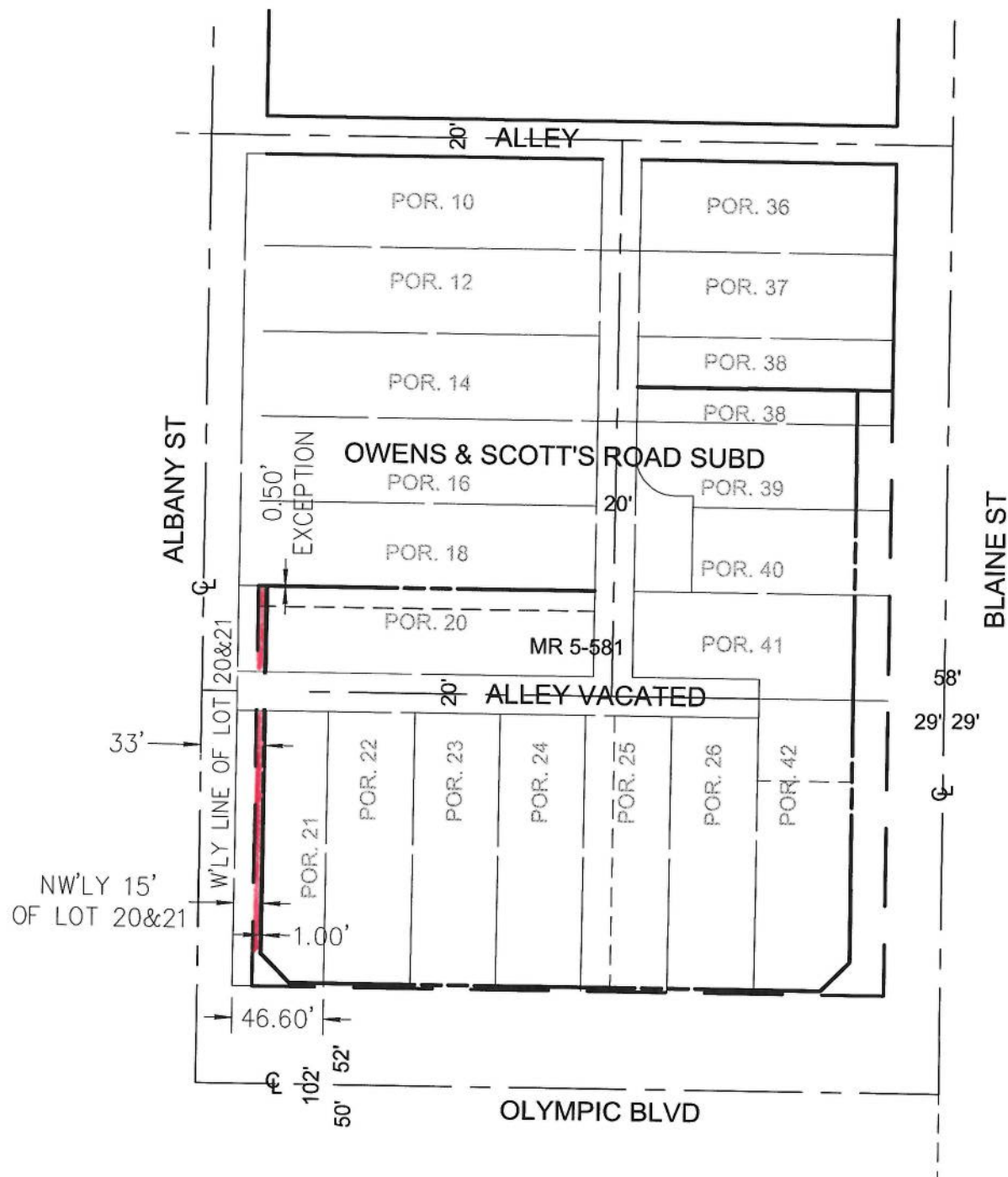


DATED: DECEMBER 21, 2022

GREGORY D. HINDSON, PROFESSIONAL LAND SURVEYOR PLS 5670

FOR AND ON BEHALF OF MOLLENHAUER GROUP

EXHIBIT B



G:\Projects\Survey\LA21300-LA21399\LA21307_Belmont Primary Center 11_LAUSD_Olympic & Blaine\Acad Drawings\LA21307_EXHIBIT.dwg Date:01/09/23 10:43a mkhudave



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CIVIL ENGINEERING
SURVEYING+MAPPING
LAND DEVELOPMENT

EXHIBIT B
† DEDICATION FOR FUTURE STREET
ON ALBANY STREET

PREPARED FOR:

LAUSD

DATE: 11/04/2022

JOB # LA21307

DRAWN MK

SCALE 1"=80'

SHEET 1 OF 1

EXHIBIT C

LEGAL DESCRIPTION- OLYMPIC BLVD 3.00 FEET WIDE DEDICATION FOR FUTURE STREET

THE NORTHEASTERLY 3.00 FEET OF THE SOUTHWESTERLY 5.00 FEET OF LOTS 21 TO 26 AND THAT PORTION OF LOT 42 INCLUSIVE, OF OWENS AND SCOTT'S SUBDIVISION OF A PORTION OF LOT 2 IN BLOCK 36 OF HANCOCK'S SURVEY, IN THE CITY OF LOS ANGELES, COUNTY OF LOS ANGELES, STATE OF CALIFORNIA, AS PER MAP RECORDED IN [BOOK 5, PAGE 581](#) OF MISCELLANEOUS RECORDS, IN THE OFFICE OF THE COUNTY RECORDER OF SAID COUNTY;

EXCEPTING THEREFROM THE NORTHWESTERLY 11.00 FEET OF SAID LOT 21.

ALSO EXCEPTING THEREFROM THE SOUTHEASTERLY PORTION OF LOT 42 DESCRIBED AS FOLLOWS:

BEGINNING A POINT ON THE NORTHWESTERLY LINE OF THE SOUTHEASTERLY 18.00 FEET OF SAID LOT 42, DISTANT THEREON NORTHEASTERLY 15.00 FEET FROM THE NORTHEASTERLY LINE OF THE SOUTHWESTERLY 2.00 FEET OF SAID LOT; THENCE WESTERLY IN A DIRECT LINE TO A POINT ON SAID NORTHEASTERLY LINE, DISTANT THEREON NORTHWESTERLY 15.00 FEET FROM SAID NORTHWESTERLY LINE; THENCE SOUTHEASTERLY 15.00 FEET ALONG SAID NORTHEASTERLY LINE TO SAID NORTHWESTERLY LINE; THENCE NORTHEASTERLY 15.00 FEET TO THE POINT OF BEGINNING.

EXHIBIT D IS INCLUDED HEREIN AND MADE A PART HEREOF.

DESCRIPTION PREPARED BY:

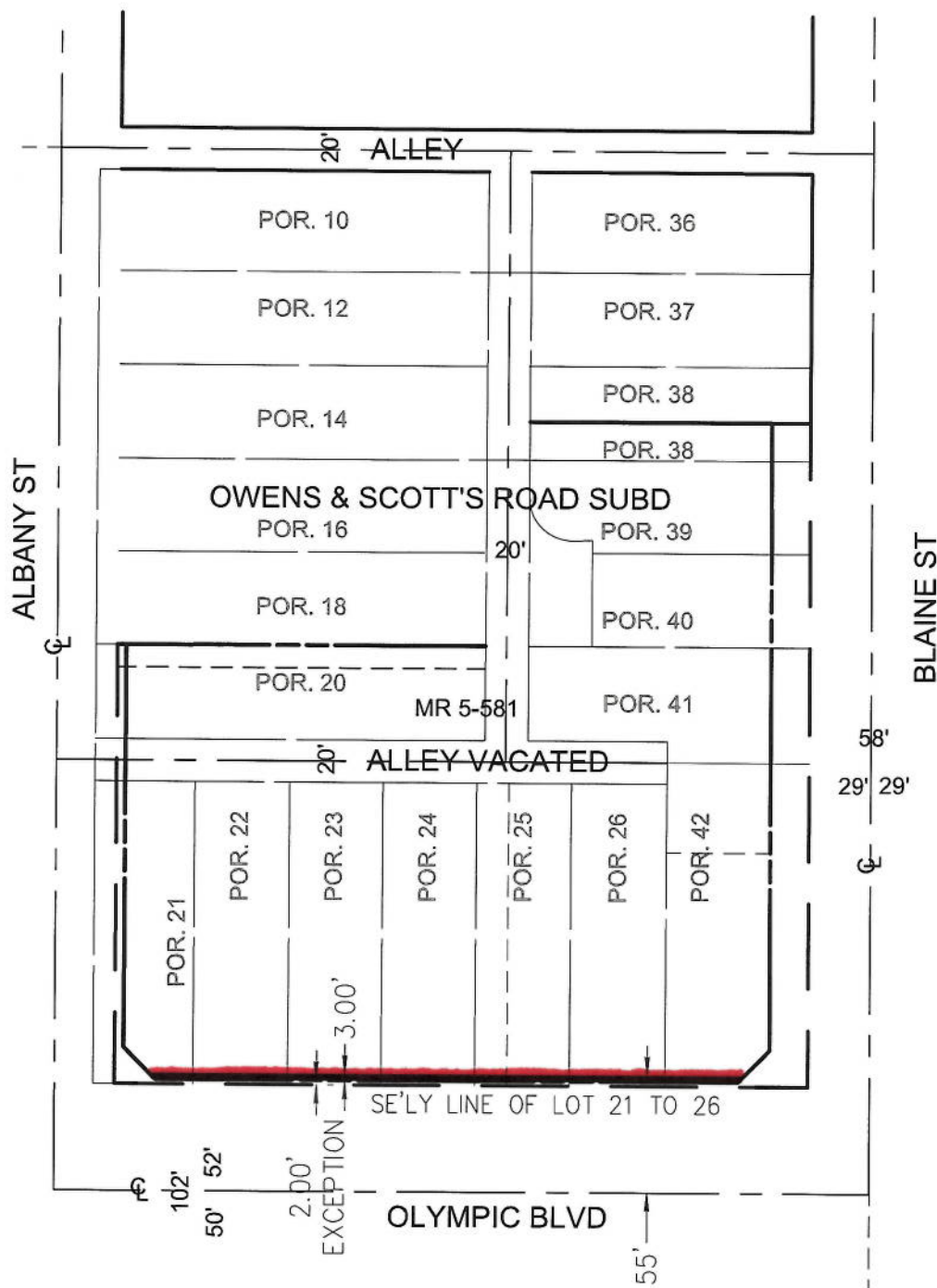


DATED: DECEMBER 21, 2022

GREGORY D. HINDSON, PROFESSIONAL LAND SURVEYOR PLS 5670

FOR AND ON BEHALF OF MOLLENHAUER GROUP

EXHIBIT D



G:\Projects\Survey\LA21300-LA21399\LA21307_Belmont Primary Center 11_LAUSD_Olympic & Blaine\Acad Drawings\LA21307_EXHIBIT.dwg Date:01/09/23 10:44a mkhudave



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LAND DEVELOPMENT

EXHIBIT D
3' DEDICATION
ON OLYMPIC BOULEVARD

PREPARED FOR:

LAUSD

DATE:	11/04/2022
JOB #	LA21307
DRAWN	MK
SCALE	1"=80'

SHEET 1 OF 1

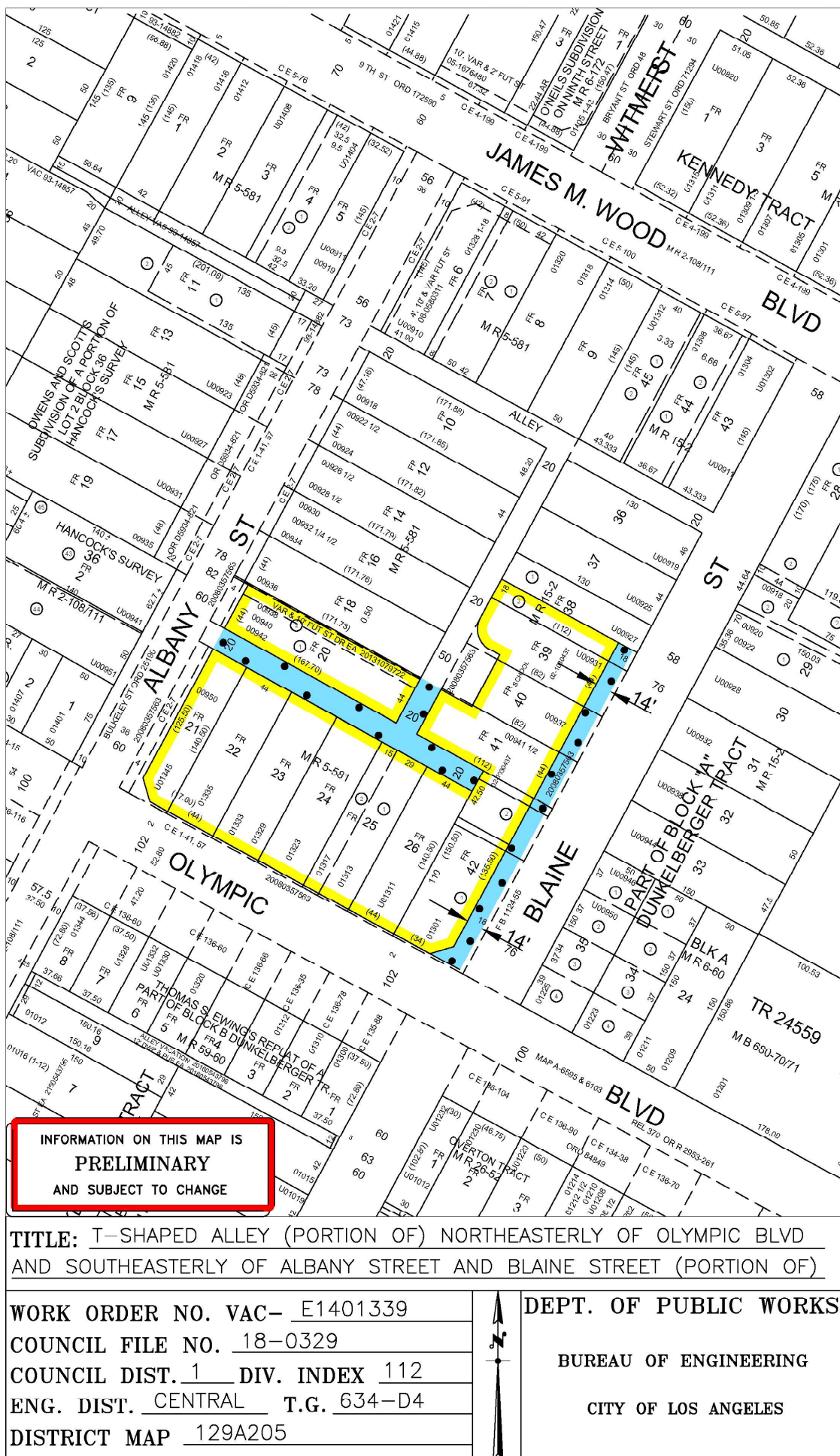


EXHIBIT F**NOTICE OF ADOPTION OF RESOLUTION OF INTENTION TO DEDICATE EASEMENTS,
ASSOCIATED WITH THE PROPOSED STREET AND ALLEY VACATION AT OLYMPIC
PRIMARY CENTER**

At the December 12, 2023, meeting of the Board of Education (“Board”) of the Los Angeles Unified School District (“Los Angeles Unified”), the following resolution was adopted by at least a two-thirds vote of all its members:

RESOLVED: That the Board, in pursuance of the provisions of Sections 17556 through 17561, inclusive, of the Education Code of the State of California, does hereby declare its intention to irrevocably offer to dedicate easements at Olympic Primary Center to the City of Los Angeles, a municipal corporation, (hereinafter called Grantee) over all that certain real property situated in the County of Los Angeles, State of California, legally described on Exhibits A and C and also shown on Exhibits B and D attached hereto.

The proposed dedication of easements to the Grantee will help complete the requirements of the pending street vacation request. The dedication of easements will be in the form of an Owner’s Dedication deed for the street easements, as legally described in Exhibits A and C and also shown on Exhibits B and D attached hereto.

The Grantee shall be responsible for damage caused intentionally or by any negligent act or omission of the respective grantee, its agent or employees while exercising the rights granted respectively herein.

BE IT FURTHER RESOLVED: That a public meeting of this Board be held in the Los Angeles Unified Board Room, 333 South Beaudry Avenue, 1st Floor, Los Angeles, 90017, the regular place of meeting of this Board, at or about 1:00 p.m., at the Regular Board Meeting to be scheduled for January 23, 2024, for a public hearing upon the question of such dedication.

BE IT FURTHER RESOLVED: That it is the intention of the Board at the time and place fixed for such public hearing or meeting, unless a petition protesting against the proposed dedication, signed by at least ten percent of the qualified electors of Los Angeles Unified, as shown by the affidavit of one of the petitioners, be filed with this Board, to order the dedication and adopt a resolution authorizing the execution and delivery of the dedication of easements to City of Los Angeles for public use.

Notice of the adoption of this resolution and of the time and place of holding said meeting shall be given by posting copies of this resolution, signed by the members of this Board or a majority thereof, in three public places in this Los Angeles Unified of Los Angeles County, not less than ten (10) days before the date of said meeting and by publishing a copy of this resolution once not less than five days before the date of said meeting in a newspaper of general circulation published in the Los Angeles Unified of Los Angeles County.

EXHIBIT F

IN WITNESS of the passage of the foregoing Resolution as prescribed by law, we, the Members of said Board, present and voting thereon, have hereunto set our hands the 12th day of December 2023.

 Members of the Board of Education of the
 City of Los Angeles

ACKNOWLEDGMENT

STATE OF CALIFORNIA

COUNTY OF LOS ANGELES

I, _____, _____, for the Board of Education of the City of Los Angeles, California, hereby certify the foregoing to be a full, true, and correct copy of Resolution of Intention to Dedicate Easements at Olympic Primary Center.

By: _____

Name: _____

Title: _____

On _____ before me,

_____ (insert name and title of the officer)
 personally appeared _____,

who proved to me on the basis of satisfactory evidence to be the person(s) whose name(s) is/are subscribed to the within instrument and acknowledged to me that he/she/they executed the same in his/her/their authorized capacity(ies), and that by his/her/their signature(s) on the instrument the person(s), or the entity upon behalf of which the person(s) acted, executed the instrument.

I certify under PENALTY OF PERJURY under the laws of the State of California that the foregoing paragraph is true and correct.

WITNESS my hand and official seal.

Signature _____ (Seal)